

**SUBSTITUTE FOR
HOUSE BILL NO. 5768**

A bill to amend 1949 PA 300, entitled
"Michigan vehicle code,"
by amending sections 309 and 310e (MCL 257.309 and 257.310e),
section 309 as amended by 2022 PA 45 and section 310e as amended by
2019 PA 33, and by adding section 309a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 309. (1) ~~Before~~**Subject to subsection (11), before**
2 issuing a license, the secretary of state shall examine each
3 applicant for an operator's or chauffeur's license who at the time
4 of the application is not the holder of a valid, unrevoked
5 operator's or chauffeur's license under a law of this state
6 providing for the licensing of drivers. Before the secretary of
7 state authorizes an individual to administer vehicle group



1 designation or endorsement knowledge tests, that individual must
2 successfully complete both a state and Federal Bureau of
3 Investigation fingerprint-based criminal history check or the
4 equivalent through the department of state police. In all other
5 cases, the secretary of state may waive the examination, except
6 that an examination must not be waived if it appears from the
7 application, from the apparent physical or mental condition of the
8 applicant, or from any other information that has come to the
9 secretary of state from another source, that the applicant does not
10 possess the physical, mental, or other qualifications necessary to
11 operate a motor vehicle in a manner as not to jeopardize the safety
12 of persons or property, or that the applicant is not entitled to a
13 license under section 303. A licensee who applies for the renewal
14 of ~~his or her~~ **the applicant's** license by mail under section 307
15 shall certify to ~~his or her~~ **the applicant's** physical capability to
16 operate a motor vehicle. The secretary of state may check the
17 applicant's driving record through the National Driver Register and
18 the Commercial Driver's License Information System before issuing a
19 license under this section.

20 (2) The secretary of state may appoint sheriffs, their
21 deputies, the chiefs of police of cities and villages that have
22 organized police departments within this state, their duly
23 authorized representatives, employees of the secretary of state, or
24 the secretary of state's duly authorized representatives as
25 examining officers for the purpose of examining applicants for
26 operator's and chauffeur's licenses. An examining officer shall
27 conduct examinations of applicants for operator's and chauffeur's
28 licenses in accordance with this chapter and the rules promulgated
29 by the secretary of state under subsection (3). After conducting an



1 examination an examining officer shall make a written report of ~~his~~
2 ~~or her~~ **the examining officer's** findings and recommendations to the
3 secretary of state.

4 (3) The secretary of state shall promulgate rules under the
5 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
6 24.328, for the examination of the applicant's physical and mental
7 qualifications to operate a motor vehicle in a manner as not to
8 jeopardize the safety of persons or property, and shall ascertain
9 whether facts exist that would bar the issuance of a license under
10 section 303. The secretary of state may consider a written medical
11 report and recommendation submitted under section 5139 of the
12 public health code, 1978 PA 368, MCL 333.5139, from the personal
13 physician or optometrist of an applicant, in making the examination
14 regarding the applicant's physical and mental qualifications to
15 operate a motor vehicle under this section and R 257.851 to R
16 257.855 of the Michigan Administrative Code. A report received by
17 the secretary of state from a physician or an optometrist under
18 this section is confidential. The secretary of state shall also
19 ascertain whether the applicant has sufficient knowledge of the
20 English language to understand highway warnings or direction signs
21 written in that language. The examination must not include
22 investigation of facts other than those facts directly pertaining
23 to the ability of the applicant to operate a motor vehicle with
24 safety or facts declared to be prerequisite to the issuance of a
25 license under this act.

26 (4) ~~The~~ **Subject to subsection (11), the** secretary of state
27 shall not issue an original operator's or chauffeur's license
28 without a vehicle group designation or ~~indorsement~~ **endorsement**
29 without an examination that includes a driving skills test



1 conducted by the secretary of state or by a designated examining
 2 officer under subsection (2) or section 310e. The secretary of
 3 state may enter into an agreement with another public or private
 4 corporation or agency to conduct a driving skills test conducted
 5 under this section. Before the secretary of state authorizes an
 6 individual to administer a corporation's or agency's driver skills
 7 testing operations or authorizes an examiner to conduct a driving
 8 skills test, that individual or examiner must successfully complete
 9 both a state and Federal Bureau of Investigation fingerprint-based
 10 criminal history check through the department of state police as
 11 required by law and as provided under 49 CFR 384.228. In an
 12 agreement with another public or private corporation or agency to
 13 conduct a driving skills test, the secretary of state shall
 14 prescribe the method and examination criteria to be followed by the
 15 corporation, agency, or examiner when conducting the driving skills
 16 test and the form of the certification to be issued to an
 17 individual who satisfactorily completes a driving skills test. An
 18 original vehicle group designation or ~~indorsement~~**endorsement** must
 19 not be issued by the secretary of state without a knowledge test
 20 conducted by the secretary of state. Except as provided in section
 21 312f(1), an original vehicle group designation or passenger or
 22 school bus ~~indorsement~~**endorsement** must not be issued by the
 23 secretary of state without a driving skills test conducted by an
 24 examiner appointed or authorized by the secretary of state or an
 25 equivalent driving skills test meeting the requirements of 49 CFR
 26 part 383 conducted in another jurisdiction.

27 (5) Except as otherwise provided in this act **and subject to**
 28 **subsection (11)**, the secretary of state may waive the requirement
 29 of a driving skills test, knowledge test, or road sign test of an



1 applicant for an original operator's or chauffeur's license without
2 a vehicle group designation or ~~indorsement~~**endorsement** who at the
3 time of the application is the holder of a valid, unrevoked
4 operator's or chauffeur's license issued by another state or
5 country.

6 (6) A driving skills test conducted under this section must
7 include a behind-the-wheel road test. Before conducting a behind-
8 the-wheel road test for an applicant seeking a vehicle group
9 designation, including any upgrade to a vehicle group designation,
10 or for any ~~indorsement~~**endorsement** required to operate a commercial
11 motor vehicle, the examiner shall determine that the applicant was
12 issued ~~his or her~~**the applicant's** commercial learner's permit not
13 less than 14 days before the date of that test and that ~~he or she~~
14 **the applicant** has that permit in ~~his or her~~**the applicant's**
15 possession.

16 (7) A person who corrupts or attempts to corrupt a designated
17 examining officer appointed or designated by the secretary of state
18 under this section or section 310e by giving, offering, or
19 promising any gift or gratuity with the intent to influence the
20 opinion or decision of the examining officer conducting the test is
21 guilty of a felony.

22 (8) A designated examining officer appointed or designated by
23 the secretary of state who conducts a driving skills test under an
24 agreement entered into under this section or section 310e and who
25 varies from, shortens, or in any other way changes the method or
26 examination criteria prescribed in that agreement in conducting a
27 driving skills test is guilty of a felony.

28 (9) A person who forges, counterfeits, or alters a
29 satisfactorily completed driving skills test certification issued



1 by a designated examining officer appointed or designated by the
2 secretary of state under this section or section 310e is guilty of
3 a felony.

4 (10) The secretary of state shall waive the requirement of a
5 written knowledge test, road sign test, and driving skills test of
6 an applicant for an original motorcycle endorsement if the person
7 has successfully passed a motorcycle safety course approved by the
8 department as described in sections 811a and 811b.

9 ~~(11) An operator's or chauffeur's license that expires on or~~
10 ~~after March 1, 2020 is valid until March 31, 2021. An operator's or~~
11 ~~chauffeur's license that expires after March 31, 2021 but before~~
12 ~~August 1, 2021 is valid until 120 days after the date of the~~
13 ~~expiration.~~ **Beginning January 1, 2028, before issuing an operator's**
14 **license to an applicant, the secretary of state shall verify that**
15 **that applicant has completed a work zone safety course that meets**
16 **the requirements of section 309a. The secretary of state shall**
17 **wave this requirement if the applicant is the holder of a valid,**
18 **unrevoked operator's or chauffeur's license issued by another state**
19 **or country.**

20 **Sec. 309a. (1) Beginning January 1, 2028, in addition to the**
21 **requirements under this act, all applicants for an operator's**
22 **license must complete a work zone safety education course that is**
23 **approved by the department and meets the following requirements:**

24 **(a) The department has consulted with the state transportation**
25 **department about the content of the work zone safety education**
26 **course.**

27 **(b) The work zone safety education course consists of not less**
28 **than 30 minutes of education delivered through either of the**
29 **following formats:**



1 (i) An online format approved by the department.

2 (ii) In-person instruction as part of a driver education course
3 under the driver education provider and instructor act, 2006 PA
4 384, MCL 256.621 to 256.705.

5 (c) The work zone safety education course must include, but is
6 not limited to, the following topics:

7 (i) Instruction on identifying and navigating highway
8 construction and maintenance zones.

9 (ii) Education on the safety precautions necessary to protect
10 both drivers and workers in work zones.

11 (iii) Information on the legal requirements and penalties
12 associated with traffic violations in work zones.

13 (iv) Strategies for safe driving behavior in the presence of
14 construction equipment and personnel.

15 (2) Successful completion of the work zone safety education
16 course described in subsection (1) must be documented and submitted
17 to the department prior to the issuance of an operator's license to
18 an applicant.

19 (3) The department shall adopt a standardized curriculum for
20 the work zone safety education course and ensure that it is
21 consistent across all delivery methods. The department may approve
22 and utilize existing driver education curriculum materials,
23 including, but not limited to, the AAA driver education curriculum,
24 if the curriculum is determined appropriate by the department and
25 meets the requirements of this section.

26 (4) The department may collaborate with the state
27 transportation department, law enforcement agencies, and other
28 stakeholders to update and enhance the course content regularly.

29 (5) The work zone safety education course must be provided to



1 participants in a driver education course authorized under the
2 driver education provider and instructor act, 2006 PA 384, MCL
3 256.621 to 256.705, at no additional cost to the participants.

4 Sec. 310e. (1) Except as otherwise provided in this act, an
5 operator's or chauffeur's license issued to ~~a person~~ **an individual**
6 who is 17 years of age or less ~~shall~~ **must** be in a form as
7 prescribed in section 310, and valid only ~~upon~~ **on** the issuance of a
8 graduated driver license.

9 (2) The secretary of state shall designate graduated licensing
10 provisions in a manner that clearly indicates that the ~~person~~
11 **individual** is subject to the appropriate provisions described in
12 this section.

13 (3) Except as otherwise provided in section 303, ~~a person~~ **an**
14 **individual** who is not less than 14 years and 9 months of age may be
15 issued a level 1 graduated licensing status to operate a motor
16 vehicle if the ~~person~~ **individual** has satisfied all of the following
17 conditions:

18 (a) Passed a vision test and met health standards as
19 prescribed by the secretary of state.

20 (b) Successfully completed segment 1 of a driver education
21 course as that term is defined in section 7 of the driver education
22 provider and instructor act, 2006 PA 384, MCL 256.627, including a
23 minimum of 6 hours of on-the-road driving time with the instructor.

24 (c) Received written approval of a parent or legal guardian.

25 (4) ~~A person~~ **An individual** issued a level 1 graduated
26 licensing status may operate a motor vehicle only when accompanied
27 either by a licensed parent or legal guardian or, with the
28 permission of the parent or legal guardian, a licensed driver 21
29 years of age or older. Except as otherwise provided in this



1 section, ~~a person~~**an individual** is restricted to operating a motor
 2 vehicle with a level 1 graduated licensing status for not less than
 3 6 months.

4 (5) ~~A person~~**An individual** may be issued a level 2 graduated
 5 licensing status to operate a motor vehicle if the ~~person~~
 6 **individual** has satisfied all of the following conditions:

7 (a) Had a level 1 graduated licensing status for not less than
 8 6 months.

9 (b) Successfully completed segment 2 of a driver education
 10 course as that term is defined in section 7 of the driver education
 11 provider and instructor act, 2006 PA 384, MCL 256.627.

12 (c) Not incurred a moving violation resulting in a conviction
 13 or civil infraction determination or been involved in an accident
 14 for which the official police report indicates a moving violation
 15 on the part of the ~~person~~**individual** during the 90-day period
 16 immediately preceding application.

17 (d) Presented a certification by the parent or guardian that
 18 the ~~person~~**individual**, accompanied by ~~his or her~~**the individual's**
 19 licensed parent or legal guardian or, with the permission of the
 20 parent or legal guardian, any licensed driver 21 years of age or
 21 older, has accumulated a total of not less than 50 hours of behind-
 22 the-wheel experience including, except as otherwise provided in
 23 this subdivision, not less than 10 nighttime hours. The nighttime
 24 hours requirement does not apply to ~~a person~~**an individual** who has
 25 been issued a graduated driver license that permits daylight
 26 driving only as provided in R 257.3 of the Michigan Administrative
 27 Code.

28 (e) Successfully completed a ~~secretary of state approved~~
 29 driving skills test **approved by the secretary of state**. The



1 secretary of state may enter into an agreement with another public
 2 or private corporation or agency to conduct this driving skills
 3 test. Before the secretary of state authorizes ~~a person~~ **an**
 4 **individual** to administer a corporation's or agency's driver skills
 5 testing operations or authorizes an examiner to conduct a driving
 6 skills test, that ~~person~~ **individual** or examiner must complete both
 7 a state and Federal Bureau of Investigation fingerprint based
 8 criminal history check through the department of state police. This
 9 subdivision applies to ~~a person~~ **an individual** 16 years of age or
 10 over only if the ~~person~~ **individual** has satisfied subdivisions (a),
 11 (b), (c), and (d).

12 **(f) Successfully completed a work zone safety course that**
 13 **meets the requirements of section 309a. The secretary of state must**
 14 **have received verification, in a form and manner determined by the**
 15 **department, that the individual has completed the work zone safety**
 16 **course prior to issuing a level 2 graduated licensing status.**

17 ~~(6) A person~~ **An individual** issued a level 2 graduated
 18 licensing status under subsection (5) shall remain at level 2 for
 19 not less than 6 months. ~~A person~~ **An individual** issued a level 2
 20 graduated licensing status under subsection (5) shall not operate a
 21 vehicle under the following circumstances:

22 (a) Between the hours of 10 p.m. and 5 a.m. This subdivision
 23 does not apply if either of the following applies:

24 (i) The ~~person~~ **individual** is accompanied by a parent or legal
 25 guardian or a licensed driver 21 years of age or older designated
 26 by the parent or legal guardian.

27 (ii) The ~~person~~ **individual** is operating the vehicle in the
 28 course of ~~his or her~~ **the individual's** employment or while going to
 29 or from employment or while going to or from an authorized



1 activity.

2 (b) With more than 1 passenger in the vehicle who is less than
3 21 years of age. This subdivision does not apply if any of the
4 following apply:

5 (i) The ~~person~~**individual** is accompanied by a parent or legal
6 guardian or a licensed driver 21 years of age or older designated
7 by the parent or legal guardian.

8 (ii) Any additional passengers who are less than 21 years of
9 age are members of ~~his or her~~**the individual's** immediate family.

10 (iii) The ~~person~~**individual** is operating the vehicle in the
11 course of ~~his or her~~**the individual's** employment or while going to
12 or from employment or while going to or from an authorized
13 activity.

14 (7) The provisions and provisional period described in
15 subsection (4) or (6) ~~shall~~**must** be expanded or extended, or both,
16 beyond the periods described in subsection (4) or (6) if any of the
17 following occur and are recorded on the licensee's driving record
18 during the provisional periods described in subsection (4) or (6)
19 or any additional periods imposed under this subsection:

20 (a) A moving violation resulting in a conviction, civil
21 infraction determination, or probate court disposition.

22 (b) An accident for which the official police report indicates
23 a moving violation on the part of the licensee.

24 (c) A license suspension for a reason other than a mental or
25 physical disability.

26 (d) A violation of subsection (4) or (6).

27 (8) The provisional period described in subsection (4) ~~shall~~
28 **must** be extended under subsection (7) until the licensee completes
29 90 consecutive days without a moving violation, an accident in



1 which a moving violation resulted, suspension, or provisional
 2 period violation listed in subsection (7), or until age 18,
 3 whichever occurs first. The provisional period described in
 4 subsection (6) ~~shall~~**must** be extended under subsection (7) until
 5 the licensee completes 12 consecutive months without a moving
 6 violation, suspension, or restricted period violation listed in
 7 subsection (7) or until age 18, whichever occurs first.

8 (9) ~~A person~~**An individual** who is not less than 17 years of
 9 age may be issued a level 3 graduated licensing status under this
 10 subsection if the ~~person~~**individual** has completed 12 consecutive
 11 months without a moving violation, an accident in which a moving
 12 violation resulted, suspension, or restricted period violation
 13 listed in subsection (7) while the ~~person~~**individual** was issued a
 14 level 2 graduated licensing status under subsection (5).

15 (10) Notice ~~shall~~**must** be given by first-class mail to the
 16 last known address of a licensee if the provisions are expanded or
 17 extended as described in subsection (7).

18 (11) ~~A person~~**An individual** who violates subsection (4) or (6)
 19 is responsible for a civil infraction.

20 (12) If ~~a person~~**an individual** is determined responsible for a
 21 violation of subsection (4) or (6), the secretary of state shall
 22 send written notification of any conviction or moving violation to
 23 a designated parent or guardian of the ~~person~~**individual**.

24 (13) For purposes of this section:

25 (a) ~~Upon~~**On** conviction for a moving violation, the date of the
 26 arrest for the violation ~~shall~~**must** be used in determining whether
 27 the conviction occurred within a provisional licensure period under
 28 this section.

29 (b) ~~Upon~~**On** entry of a civil infraction determination for a



1 moving violation, the date of issuance of a citation for a civil
 2 infraction ~~shall~~**must** be used in determining whether the civil
 3 infraction determination occurred within a provisional licensure
 4 period under this section.

5 (c) The date of the official police report ~~shall~~**must** be used
 6 in determining whether a licensee was driving a motor vehicle
 7 involved in an accident for which the official police report
 8 indicates a moving violation on the part of the licensee or
 9 indicates the licensee had been drinking alcoholic liquor.

10 (14) ~~A person~~**An individual** shall have ~~his or her~~**the**
 11 **individual's** graduated licensing status in ~~his or her~~**the**
 12 **individual's** immediate possession at all times when operating a
 13 motor vehicle, and shall display the card ~~upon~~**on** demand of a
 14 police officer. ~~A person~~**An individual** who violates this subsection
 15 is responsible for a civil infraction.

16 (15) As used in this section, "authorized activity" means any
 17 of the following:

18 (a) A school or a school-sanctioned event or activity. For
 19 purposes of this subdivision, school means a public or private
 20 school, including a home school.

21 (b) A sporting event or activity, or extracurricular event or
 22 activity, that is not school-sanctioned but that is part of an
 23 official sports league or association or an official
 24 extracurricular club, or that is paid for as a service offered by a
 25 business specializing in those events or activities or training for
 26 those events or activities.

27 (c) A class or program of vocational instruction offered by a
 28 college, community college, nonprofit association, or unit of
 29 government or by a business specializing in vocational training.



1 (d) An event or activity sponsored by a religious organization
2 that is tax-exempt under federal law.

3 (e) Transporting an individual in need of immediate emergency
4 care or personal protection to a health care professional,
5 hospital, police station, domestic violence shelter, or public
6 safety location.

7 Enacting section 1. This amendatory act does not take effect
8 unless House Bill No. 5767 of the 103rd Legislature is enacted into
9 law.